

tolerated in a civilized community. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.)

Employment actions can involve outrageous conduct. (*Murray v. Oceanside Unified School Dist.* (2000) 79 Cal.App.4th 1338, 1362-1363; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 618.) However, “personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged.” (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 80.) Where personnel management decisions are improperly motivated, the remedy lies in a statutory discrimination claim rather than a tort claim for emotional distress. (*Ibid.*)

Plaintiff argues that because the same facts support his FEHA claims, they also support a “derivative” IIED claim. The Court disagrees. An IIED claim is subject to a higher pleading standard and conduct sufficient to alter working conditions under FEHA may still fall short of the extreme and outrageous conduct required for IIED.

The facts Plaintiff identifies in support of his IIED claim consist of allegations that he was treated unfairly, that his complaints were ignored, that supervisors spoke to him in a demeaning or unprofessional manner, that he was accused of misconduct, that Human Resources and the school board failed to respond, and that he received work-related emails while on medical leave. Even accepted as true, this does not exceed all bounds tolerated in a civilized society and therefore does not constitute extreme and outrageous conduct. Absent additional aggravating circumstances, such allegations may support statutory employment claims, but they are insufficient to state a claim for IIED.

Accordingly, the demurrer to the eighth cause of action is **sustained with leave to amend**.

Disposition

Defendant’s demurrer to the second cause of action for hostile work environment harassment is **overruled** and its demurrer to the eighth cause of action for intentional infliction of emotional distress is **sustained with leave to amend**. Defendant shall prepare the order and serve notice of entry of order. Plaintiff shall have 30 days from service of notice of entry of order in which to file and serve an amended complaint.

13. 9:00 AM CASE NUMBER: C25-01696
CASE NAME: PAUL RAPIER VS. CATHERINE FOSTER
***HEARING ON MOTION IN RE: TO STRIKE PUNITIVE DAMAGE DEMAND**
FILED BY: FOSTER, CATHERINE
TENTATIVE RULING:

The hearing on this Motion is vacated. (See Notice of Withdrawal of Motion filed 12/5/25.)

14. 9:00 AM CASE NUMBER: MSC21-01827

CASE NAME: FROES VS. ROC FUNDING GROUP

***HEARING ON MOTION IN RE: A NEW TRIAL**

FILED BY: ROC FUNDING GROUP, LLC A NEW YORK LIMITED LIABILITY COMPANY

TENTATIVE RULING:

The Court has reviewed Defendant ROC Funding Group's Motion for New Trial and Plaintiff Stella Froes' opposition. Counsel may appear at the hearing on this motion via Zoom or in-person. The Court intends to take this matter under submission and to issue a written ruling. The Court orders that the enforcement of Plaintiff's Judgment on the Special Verdict filed on October 15, 2025, is stayed pending a ruling on Defendant's motion.

15. 9:00 AM CASE NUMBER: MSL20-06032

CASE NAME: ROMON CALHOUN VS. RELIANT PROPERTY MANAGEMENT, INC. (PREVIOUSLY RELIANT PROPERTY MANAGEMENT, LLC)

***HEARING ON MOTION IN RE: MOTION FOR ORDER TO ANSWER DEPO QUESTIONS AND PRODUCE DOCS FILE BY DEF ON 09/04/2025**

FILED BY: RELIANT PROPERTY MANAGEMENT, INC. (PREVIOUSLY RELIANT PROPERTY MANAGEMENT, LLC)

TENTATIVE RULING:

Summary

Defendants' Motion for Order Compelling Plaintiff Romon Calhoun ("Plaintiff") to Provide Answers to Deposition Questions for production of documents, and for sanctions, is **granted** as set forth herein.

Background

This is a limited jurisdiction case filed on December 17, 2020 wherein Plaintiff filed causes of action against Defendants for breach of quiet enjoyment, retaliation, constructive eviction, breach of contract and for a return of his security deposit related to the real property located at 1231 Willow Ave., Hercules, CA ("Subject Property"). Defendants are the landlords, property owners or property managers of the Subject Property.

Defendants claim that Plaintiff refused to answer questions during his deposition on July 22, 2025 and refused to produce documents requested without substantial justification relating to his claims related to Defendant's breach of his quiet enjoyment, constructive eviction and related claims. As an example, during his deposition, Plaintiff refused to answer questions, including, but not limited to (a) his current residence after residing at the Willow Ave. address; (b) whether he is living in an apartment; (c) whether he was leasing an apartment, and the identity of persons who have knowledge of this case. These questions are relevant and would lead to the discovery of admissible evidence. Plaintiff also refused prepare responses to Defendant's Request for Production of Documents, Nos. 1-26, without substantial justification. The documents requested include documents that support his claims against Defendants for constructive eviction and .

On September 4, 2025, Defendants Reliant Property Management, Inc., Reliant-East Bay, LP, and Rainbow Housing Assistance Corporation ("Defendants") filed their Motion to Compel Plaintiff to